Supreme Court, U.S.
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No. ____

IN THE
Supreme Court of the United States
OCTOBER TERM, 1998

MARILYN MINNS, individually and as parent and guardian of CASEY R. MINNS (infant); CASEY R. MINNS; DENISE BLAKE, individually and as parent and guardian of KATELYN L. BLAKE (infant); KATELYN L. BLAKE; KIMBERLY WALSH, individually and as parent and guardian of JENA WALSH (infant); JENA WALSH,
Petitioners,

v.

UNITED STATES OF AMERICA,
Respondent.

On Petition for Writ of Certiorari to the United States Court of Appeals for the Fourth Circuit

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PETITION FOR WRIT OF CERTIORARI

H. RUSSELL SMOUSE
Counsel of Record
KENNETH D. PACK
LAW OFFICES OF
PETER G. ANGELOS
A Professional Corporation
One Charles Center
Suite 2200
100 North Charles Street
Baltimore, Maryland 21201
(410) 649-2140
Attorneys for Petitioners

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QUESTIONS PRESENTED FOR REVIEW

1. Whether the doctrine of *Feres v. United States*, 340 U.S. 135 (1950) applies as an absolute bar to the claims of the spouses and children of military personnel for their own direct physical injuries, including birth defects, under the Federal Tort Claims Act (28 U.S.C. §§ 1346(b), 2671 *et seq.*) ("FTCA") where the injuries were also related to exposure of the military parent to toxic chemicals in connection with the Persian Gulf War.

2. Whether the claims of the spouses and children of military personnel under the FTCA are equally barred by the discretionary function exception to the FTCA (§ 2680(a)), even where they allege abuse of discretion and/or failure to follow established policies relating to administering untested and dangerous vaccines to military personnel, failure to warn the civilians of dangers, and the grossly negligent or reckless use and administration of pesticides and other toxic substances, without complying with applicable directions and procedures for use, or providing any warning of any danger of exposure.

3. Whether military spouses and minor children who suffered injury and damages as a result of otherwise compensable acts and omissions by the United States Government are virtually the only aggrieved class with no judicial or statutory remedy or rights?

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CITATIONS OF REPORTS OF THE OPINIONS BELOW

Minns v. United States, 974 F. Supp. 500 (D. Md. 1997), *aff'd, Minns v. United States*, 115 F.3d 445 (4th Cir. 1998). (Pet. App. A, 1a.)

BASIS FOR JURISDICTION

The judgment for which review is sought was entered September 2, 1998. This Court has jurisdiction to review the judgment of the Court of Appeals for the Fourth Circuit pursuant to 28 U.S.C. § 1254(1).

APPLICABLE STATUTORY PROVISIONS

The Federal Tort Claims Act

28 U.S.C. § 1346(b)(1)

Subject to the provisions of Chapter 171 of this title the District Courts . . . shall have exclusive jurisdiction of civil actions on claims against the United States, for money damages, accruing on or after January 1, 1945, for injury, for injury or loss of property, or personal injury or death caused by the negligent or wrongful act or omission of any employee of the Government while acting within the scope of his office for employment, under circumstances where the United States, if a private person, would be liable to the claimant in accordance with the law of the place where the act or omission occurred.

28 U.S.C. § 2680—Exceptions

The provisions of this Chapter [28 U.S.C.S. §§ 2671 *et seq.*] and Section 1346(b) of this title shall not apply to—

(a) Any claim based upon an act or omission of an employee of the Government, exercising due care, in the execution of a state or regulation, whether or not such statute or regulation be valid, or based upon the exercise or performance with the failure to exercise or perform a discretionary function or duty on the part of a Federal agency or an employee of the Government, whether or not the discretion involved be abused.

STATEMENT OF THE CASE

The Plaintiffs/Appellants in these three consolidated actions are the wives and minor children of servicemen who have suffered severe birth defects as a result of exposure, without warning, to, drugs, pesticides, and unreasonably dangerous and toxic products employed by the Defendant United States of America during the course of the children's fathers' military service. The birth defects are extremely severe and rare (one occurrence per 26,000 births, according to the *Encyclopedia of Birth Defects*, 1992 Ed.). Two of the minor Plaintiffs suffer from Goldenhars Syndrome, which includes asymmetric development of the face and body, imperfect ear development, asymmetric body development, internal fistulas, and numerous other problems.

The Complaints allege that the Defendant United States negligently exposed the Plaintiff mothers and children to the hazardous combination of products without warning, as well as exposing the father serving in the military during the Gulf War. Hence, the Complaints squarely allege direct injury to the non-service Plaintiffs as a result of the Defendant's conduct.

All of the appellants submitted their claims under the Federal Tort Claims Act (FTCA), 28 U.S.C. § 1346(b), 2671-2680, to the Office of the Judge Advocate General at Fort Meade, Maryland. All of their claims were denied in February, 1996. Pet. App. C, 34-35a (the claim denial letter was virtually identical for all Petitioners, Pet. App. C is applicable to all). The Petitioners filed their Complaints in the United States Court for the District of Maryland in August, 1966 pursuant to the FTCA, § 1346(b) and 10 U.S.C. § 2733 (Military Claims Act).

The Complaints allege that the wives and children suffered injuries in the form of birth defects caused by their exposure to hazardous drugs, inoculations, pesticides and other toxic substances employed by the Respondent Gov-

ernment during the term of the fathers' military services at the time of the Persian Gulf War. The claims were consolidated before Judge Joseph H. Young, Senior District Judge. Prior to any discovery, the Government moved to dismiss the Complaints for lack of subject matter jurisdiction under the FTCA as arising out of an injury to service members incident to military service, as protected discretionary acts, as combatant activities and as barred because the claim arose in a foreign country.

The Petitioners opposed these contentions on the grounds that they alleged, as civilians, direct injury to themselves arising out of the conduct of the Defendant United States and that such claims are cognizable under the FTCA, notwithstanding the doctrine of *Feres v. United States*, 340 U.S. 135 (1940), which provides for the Government's sovereign immunity for injuries to servicemen arising out of activity incident to service. They also argued that the discretionary function exception is not applicable where negligence occurred at the non-policy operational level, in implementation of high level policy decisions, and where there is no room for independent judgment due to an already established policy, such as safety. The Petitioners urged that it is premature prior to discovery to determine where, by whom and under what constraints such decisions as caused the Plainitffs' injuries were made.

The trial court granted the Government's Motion to Dismiss on the grounds that the court lacked subject matter jurisdiction, Pet. App. B, 31a, *Minns v. United States*, 974 F. Supp. 500. The Court of Appeals for the Fourth Circuit affirmed his decision on substantially the same grounds. Pet. App. A, 2a-16a, *Minns v. United States*, 155 F.3d 445 (4th Cir. 1998). For the first time, the Fourth Circuit adopted the "genesis" test for evaluating that the *Feres* doctrine bars such derivative genetic injury claims. The panel held that even if the wives and children did suffer direct injury, their injuries had their "genesis"

in the barred claims of the servicemen fathers. Pet. App., 8a. The court also held that the discretionary function doctrine grants the Government immunity from such claims and that it also lacked jurisdiction to review the MCA claims. Pet. App., 15a. The court did not reach the issue whether the combatant activities or foreign countries exceptions to the FTCA apply because the foregoing determinations rendered resolution of that issue unnecessary. Pet. App., 15a.

Significantly, both the appellate and the district courts expressed their dissatisfaction with the unjust consequences of their rulings. "In reaching this decision, the Court is not without sympathy for the suffering of the minor Plaintiffs and their current lack of a remedy. . . ." Pet. App. B, 24a n.6; Pet. App. A, 16a ("Our rulings leave the wives and children of the three returning servicemen without a judicial remedy, even if their claims have merit.") The trial court quoted, with approval, the Third Circuit Court of Appeals in *Mondelli v. United States,* 711 F.2d 567, 569-70 (3d Cir. 1983), *cert. denied,* 465 U.S. 1021 (1984):

> We sense the injustice to the [the Plaintiff] of this result. Rarely does the law visit upon a child the consequences of actions attributed to the parents. Nevertheless the Supreme Court has construed the FTCA to subordinate the interests of children of service personnel to the exigencies of military discipline. Although these are delicate policy judgments, they are in the final analysis committed to Congress. Consequently, we conclude with reluctance, that the claims of [the Plaintiff] are barred.

Pet. App. B, 24a-25a n.6.

The trial court granted the defendant's Motion to Dismiss based solely upon the allegations in the Complaints. Hence the "facts" in this case are the allegations of the plaintiffs and all inferences most favorable to them, includ-

ing any facts which they might have been able to establish through the course of discovery, none of which took place.

The serviceman fathers were administered combinations of immunization agents, such as Pryridogstigmine Bromide (P.B.), anthrax vaccine, and botulinum toxoid, without prior or subsequent warning that these agents were experimental as administered, in that they had either never been tested and approved on humans or, as with P.B., pills not tested on a normal human population. They were investigational drugs, as used.

Questions of quality control are also relevant, in that some of these agents may have been contaminated, due to improper storage and/or lack of quality control or testing. Petitioners also alleged that the manner in which pesticides were sprayed, without regard to manufacturers' instructions, resulted in overexposure to toxic substances.

The Petitioners also alleged that they suffered their injuries as a result of direct exposure to, and contact with the hazardous products the Government employed. The wives and children do not even allege that the serviceman fathers suffered injury, or that any injury they may have suffered was the same as the injuries to the Plaintiffs. Among the possibilities which the Appellants could establish after completion of discovery, are that the Petitioners' injuries resulted from contamination following direct contact with the spouse, or his clothing. Their injuries may have resulted from toxic substances, such as Dursban, passing into the mothers' system via semen, stored in fat cells and later released to cause damage in fetal development.

REASONS FOR ALLOWANCE OF THE WRIT

The Petitioners believe that the United States Court of Appeals has decided an important question of federal law that has not been, but should be settled by this Court. The issue whether the spouses and children of Gulf War, indeed all military personnel, are barred as a matter of law from any recovery for injuries they suffered as a result of the government's culpable conduct is important for many reasons.

First, it is fundamentally unfair that only these, of all citizens, should be deprived of any recourse for such significant, indeed catastrophic injuries. Second, the magnitude of the problem is extensive, potentially affecting thousands of spouses and children for their entire lives at a cost of millions of dollars. Third, unless fully and finally resolved by the Court, these identical issues will be raised again and again in the courts below, and by petition to this Court. *See Clark v. United States,* 116 F.3d 476 (5th Cir. 1997), *aff'g* 974 F. Supp. 895 (E.D. Tex. 1996), *cert. denied,* 118 S. Ct. 625 (1997). The allegations of *Clark,* as evidenced by the rather perfunctory analysis of the issues by the District Judge in Texas, were more narrow and limited than those raised in these Complaints, and the arguments raised, as addressed by that court, apparently were more limited than here. *Compare* the detailed analysis of the Maryland District Judge and the panel of the Fourth Circuit Court of Appeals (Pet. App. A and B) with the short shrift given to Clark's arguments by the Texas District Court, 974 F. Supp. 895, and the affirmation without comment of the Fifth Circuit Court of Appeals. This Court is the appropriate forum for defining the scope and limits of the *Feres* doctrine under circumstances such as these and for providing appropriate guidance as to the factors to be weighed, and the relative significance of each such factor, particularly the absence of any remedy.

Finally, the Court should note that this problem of birth defects related to the Gulf War has received widespread publicity, and has caused great concern, and even some unrest, among the general public, and certainly those affected by this misfortune. The absence of any recourse can only contribute to this ongoing sense of disaffection.

I. *FERES* DOCTRINE

The FTCA provides, in general, that the United States shall be liable for tort claims in a manner similar to that of a "private individual under like circumstances," 28 U.S.C. § 2674. Nonetheless, this overbroad construction of the *Feres* doctrine places these Petitioners in the anomalous position of having no remedy or recourse because they have the misfortune to be the wives and children of military personnel. Even the military member of the family is entitled to some form of statutory compensation for any injury he might sustain in the line of duty, even if he cannot sue the government in tort. It is incomprehensible that virtually the only class of wrongfully damaged individuals in this society denied any right to seek damages for their injuries is comprised of those who suffer most—and deserve more—the spouses and deformed minor children of service personnel injured as a consequence of that service.

The courts below erred in holding that the *Feres* doctrine bars claims by civilians, without other remedy, for their own direct injuries arising out of their own direct exposure to toxic agents, even if caused by the culpable conduct of the Government. The appropriate standard for determining whether a claim is barred under *Feres* is a three-prong balancing test. *Feres*, 340 U.S. at 143. The balance weighs heavily for the Petitioners in that: (1) they have no other remedies; (2) they have no distinctive relationship with the United States Government; and (3) the effect upon military discipline and morale

would be minimal at worst, particularly with respect to post-war warnings.

It is clear that under *Feres* and its progeny, *e.g., Stencel Aero Engineering Corp. v. United States,* 431 U.S. 666 (1977), that the civilian family member of the service person may not maintain a claim for direct injuries to the service person incident to that service, *e.g., De Font v. United States,* 453 F.2d 1239 (1st Cir.), *cert. denied,* 407 U.S. 910 (1972) (denying claim of wife for wrongful death of husband where husband would have been barred by *Feres* had he survived). However, it is equally clear that *Feres* does not bar the claims of civilian Plaintiffs for their own independent injuries, even where military family members would be barred by *Feres* from pursuing their own claims arising out of the same incident, *e.g. Orken v. United States,* 239 F.2d 850 (6th Cir. 1956). In *Orken* the court permitted claims of civilian family members of an officer killed when an Air Force plane crashed into their living quarters, while barring the related claim of the officer himself even though it arose out of the same incident. Indeed, in *Orken,* the civilian and military injuries were similar and arose out of a common occurrence, with the only significant distinction the military or civilian status of the injured parties.

The Court of Appeals for the Fourth Circuit recognized this latter principle in *Romero v. U.S.,* 954 F.2d 223 (4th Cir. 1992), *proceedings after remand,* 806 F. Supp. 569 (E.D. Va. 1992), *aff'd without published opinion,* 2 F.3d 1149 (4th Cir. 1993). There, the Court held that the claims of negligent prenatal care administered to the pregnant active duty military mother by Government medical employees was not barred by *Feres* because "we believe the precedent governing injuries by the military to civilians applies here. The civilian child was injured, not a military patient," 954 F.2d 223. Similar results were reached in other cases involving injury to a military child in the medical malpractice context. *Del*

Rio v. United States, 833 F.2d 282 (11th Cir. 1987); *Atkinson v. United States,* 825 F.2d 202 (9th Cir. 1987), *cert. denied,* 485 U.S. 987 (1988).

The *Del Rio* case is particularly instructive because in that case the pregnant mother was also injured in the course of the negligent treatment that led to the loss of her twin children. The claims of the children were based upon the allegations that the military mother did not receive proper prenatal treatment due to a pre-existing condition. Nonetheless, although her claims were barred, those of her children were not. The Fourth Circuit Panel in *Romero* expressly found the reasoning of the Ninth Circuit in *Atkinson* "persuasive when the Plaintiff is a civilian child." 954 F.2d 227 n.6. Here, both the Petitioner mothers and children are civilians, and their claims must be allowed to proceed.

II. DISCRETIONARY FUNCTION EXCEPTION

The discretionary function exception, 28 U.S.C. § 2680(a) is also not applicable where the Appellants have alleged that their injuries occurred through non-conforming batches of inoculant, the failure of the Government to follow its own policies and standards with respect to warnings and the use of pesticides, and where pesticides were sprayed in disregard of directions and instructions for safe use. *See Berkovitz v. United States,* 486 U.S. 531 (1988). The appeals court below concluded that:

> Even if the military used investigational, worn out or defective drugs that had been stored too long, someone in the military nevertheless made the decision to use them, and that decision, with all its alleged flaws, amounted to a judgment that the risk of using these drugs was less than the risk of exposing unprotected soldiers to potential biological and chemical attack.

Pet. App. A, 13a.

That conclusion, without facts and context, is too extreme. For example, in the event that there were in effect policies and procedures against, or to prevent such administration and use of defective drugs, or the reckless administration of pesticides, and the innocent wives and children of the exposed fathers were injured as a result of pure negligence or recklessness in violation of those policies and procedures, without any knowledge or consideration of the risks and potential benefits of such use, there must be a judicial remedy.

These allegations, if established, would place this case within the parameters of *Dube v. Pittsburgh Corning*, 870 F.2d 790, 799 (1st Cir. 1989) in which the Navy's negligent failure to warn of asbestos hazards was not a discretionary policy decision protected by the discretionary function exception. The *Dube* case would particularly apply were the plaintiffs to establish that the Department of Defense had established a policy, by its agreement with the FDA, to warn of the risks of its use of investigative drugs, and that lower level staff, who did not have discretion in the matter, breached that policy. Similarly, in *Griffin v. United States*, 500 F.2d 1059 at 1066 (3rd Cir. 1974) the court held that:

> Where the conduct of Government employees in implementing agency scientific evaluation and not the formulation of policy, we do not believe that the conduct is immunized from judicial review as a 'discretionary function'.

The purchase and use of immunizing agents and pesticides without testing and quality control, and improper storage, implicates this principle of safety, as does the manner and use of pesticides without following the manufacturers' directions. *See Moyer v. Martin Marietta Corp.*, 481 F.2d 585 (5th Cir. 1973) (refusing to apply discretionary exception to procurement decision regarding faulty ejection seat mechanism in B-57, but not to decision to procure B-57).

CONCLUSION

For the reasons set forth above, the decision of the court below affirming dismissal of the Petitioners' Complaints should be reversed and remanded to the United States District Court for the District of Maryland for discovery. In the alternative, Appellants request that these cases be remanded to the Department of the Air Force for reconsideration of the administrative claims pursuant to the Federal Tort Claims Act.

Respectfully submitted,

H. RUSSELL SMOUSE
Counsel of Record
KENNETH D. PACK
LAW OFFICES OF
PETER G. ANGELOS
A Professional Corporation
One Charles Center
Suite 2200
100 North Charles Street
Baltimore, Maryland 21201
(410) 649-2140
Attorneys for Petitioners